

24CHCV00092 24CHCV00092

County: los-angeles

Division: Civil Law and Motion

Department: F49

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Case Number: 24CHCV00092 Hearing Date: September 9, 2026 Dept: F49

Dept. F49

Date: 9/9/26

Case Name: Gabriel Marroquin vs. Flixbus, Inc., John
Doe, and Does 1-50

Case No. 24CHCV00092

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 9, 2026

MOTION TO DEEM

MATTERS ADMITTED; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV00092

Motion filed: 5/8/26

MOVING PARTY: Defendants Flixbus, Inc. and Classic
Charter, Inc.

RESPONDING PARTY: None

NOTICE: Defective

RELIEF REQUESTED: An order from this Court deeming the truth of matters specified in Defendants' Request for Admissions (Set 1); and awarding monetary sanctions in the amount of \$880.00.

TENTATIVE RULING: The motion is DENIED. The request for sanctions is DENIED.

BACKGROUND

On January 9, 2024, Plaintiff Gabriel Marroquin ("Plaintiff") initiated this action against Defendants Flixbus, Inc. ("Flixbus"), John Doe ("Doe"), and Does 1 through 50 (collectively, "Defendants") for motor vehicle negligence. The Complaint alleges that Plaintiff sustained injuries in a motor vehicle accident that occurred August 8, 2023. On January 15 and January 17, 2025, Plaintiff filed amendments to the Complaint, naming Classic Charter, Inc. ("CC") and Porter Fox ("Fox") as Doe 1 and John Doe, respectively.

On February 13, 2024, Flixbus filed an Answer.

On January 30, 2025, CC filed an Answer.

On May 8, 2026, Flixbus and CC (collectively, "Moving Defendants") filed the instant motion to deem the truth of the matters set forth in their Request for Admissions (Set 1) (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.
Notice

As a preliminary matter, the Court notes that on November 6, 2025, Plaintiff's counsel moved to be relieved. On December 16, 2025, the Court granted the Motion. The order granting relief indicates that it is effective upon the filing of the proof of service of the signed order upon the Plaintiff. (Order, Dec. 18, 2025.) Plaintiff's counsel filed proof of service of the order on June 8, 2026. The proof of service indicates that Plaintiff was served with the order granting relief the same day. Relief was accordingly not effective until June 8, 2026, and until that date, Plaintiff was represented by counsel.

Where a party is represented by counsel, service of any papers, when required, must be made upon the attorney instead of the party. (Code Civ. Proc., § 1015.) Here, Moving Defendants' counsel attests that Moving Defendants served Plaintiff with their Request for Admissions (Set 1) on March 12, 2026. (Angle Decl., ¶ 3.) Proof of service of the requests indicates that they were served via email and mail to Plaintiff's personal email and address. (Id., Exh. A.) The proof of service attached to the Motion, filed on May 8, 2026, also indicates service by email and mail to Plaintiff himself. In March and May 2026, however, Plaintiff was still represented by counsel, whose relief had not yet become effective. Service was therefore required to be made on counsel instead of Plaintiff. Service of the requests and the Motion are accordingly defective.

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Defendants Flixbus, Inc. and Classic Charter, Inc.'s motion to deem the truth of the matters specified in their Request for Admissions (Set 1). Defendants' request for sanctions is DENIED.

Moving party to give notice.